

52	Murray vs. Tesla, Inc. 25-01457562	Motion for Order to Stay Proceedings The Motion for Stay brought by Defendants Tesla, Inc. and Tesla Energy Operations, Inc. is GRANTED. The relevant arbitration provision states: “The laws of the state where your Home is located shall govern this PPA without giving effect to conflict of law principles.” (§4 of Klimkowski Declaration and Exhibit B thereto, at §18; See also ¶16 of Complaint and Exhibit A thereto.) The arbitration provision proceeds to indicate arbitration will be administered by JAMS, and thereafter states: “The arbitration will be governed by the Federal Arbitration Act (Title 9 of the U.S. Code).” (<i>Ibid.</i>) Given the arbitration provision references <i>both</i> the FAA and “[t]he laws of the state where your Home is located” (in this case indisputably California), the provision does not clearly communicate intent to apply the FAA “to the exclusion of California procedural law.” (<i>Cronus Investments, Inc. v. Concierge Services</i> (2005) 35 Cal.4th 376, 383.) “[W]here, as here, the parties do not ‘expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law’ [Citation], California procedures necessarily apply.” (<i>Los Angeles Unified School Dist. v. Safety National Casualty Corp.</i> (2017) 13 Cal.App.5th 471, 482.) Notably, the <i>broad</i> reference to “[t]he laws of the state where your Home is located” is itself included within the arbitration provision, merely two sentences before the reference to the FAA. (§4 of Klimkowski Declaration and Exhibit B thereto, at §18; See also ¶16 of Complaint and Exhibit A thereto.) The location of the above-mentioned choice-of-law provision indicates an intent for both California law and the FAA to apply to arbitration; however, the intention of the parties where, as here, the CAA and FAA directly conflict – is unclear. Regardless of the above, however, the Court exercises its inherent authority to stay this action. “[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 141.) While Code of Civil Procedure section 1294, subdivision (a), indicates an <i>automatic</i> stay does not attach, even assuming its application, the provision does not limit the Court’s inherent ability to issue a stay. “Even when the statutes do not call for an automatic stay on appeal, the trial and appellate courts both have the power to issue discretionary stays.” (<i>Daly v. San Bernardino County Bd. of Supervisors</i> (2021) 11 Cal.5th 1030, 1039.) Here, the reasoning provided by the United States Supreme Court in <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736 is persuasive: “If the district court could move forward with pre-trial and trial proceedings while the appeal on arbitrability was ongoing, then many of the asserted benefits of arbitration (efficiency, less expense, less intrusive discovery, and the like) would be irretrievably lost – even if the court of appeals later concluded that the case actually had belonged in arbitration all along.” (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 743.)
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53	Scott vs. Placentia – Yorba Linda Unified School District 25-01489479	Demurrer to Amended Complaint Defendant Placentia-Yorba Linda Unified School District’s Demurrer to first and second causes of action contained in Plaintiff Beth Scott’s First Amended Complaint is SUSTAINED with leave to amend. <i>General Legal Authority</i> To bring any cause of action or lawsuit against a public entity, the plaintiff must have statutory authority to do so: “Except as otherwise provided by statute ... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov’t Code § 815(a).) By statute, a public entity is vicariously liable “for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov’t Code § 815.2.) Further, a public entity may itself be liable for violating a mandatory duty imposed by statute: Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty. (Gov’t Code § 815.6.) Moreover, in order to state a cause of action against a public entity, “every fact material to the existence of its statutory liability must be pleaded with